

24STCV32139 24STCV32139

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-28

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Case Number: 24STCV32139 Hearing Date: July 28, 2026 Dept: 512

HEARING DATE: Tuesday, July 28, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Simmons

v. Univ. of S. Cal., et al. COMP. FILED: 12-06-24

CASE NUMBER: 24STCV32139

TRIAL DATE: 05-17-27

NOTICE: NOT OK

PROCEEDINGS: MOTION

TO BE RELIEVED AS COUNSEL

MOVING PARTY: Plaintiff's

Counsel Jonathan Shirian / Quill & Arrow LLP

RESP. PARTY: None (No Opposition)

MOTION TO BE RELIEVED AS COUNSEL

(C.R.C.

3.1362)

TENTATIVE RULING:

Plaintiff's Counsel's Motion to be

Relieved as Counsel is CONTINUED to August 27, 2026 at 8:30 a.m. Department 512
of the Stanley Mosk Courthouse.

At least 16 court days prior to the continued hearing date, Counsel is to file and serve proper supplemental documents addressing defects along with proof of service and notice of hearing on Plaintiff.

The moving party must also submit a corrected MC-053 form providing accurate dates.

Plaintiff's Counsel is ordered to give notice.

SERVICE:

Counsel has not demonstrated effective service of his motion.

Subdivision

(d) of Rule of Court 3.1362 states the requirements of service of a motion to be relieved upon moving counsel's client: service must be made on the moving counsel's client and all parties who have appeared. (Cal. R. Ct. 3.1362(d).) Service on the client may be made personally or by electronic or regular mail. (Ibid.) If served on the client by mail, counsel must submit a declaration attesting that either (1) the address is current; or (2) the address is the last address known to counsel, and counsel made reasonable efforts to locate a more current address within thirty (30) days of filing his, her, or their motion. (Id., subd. (d)(1).)

In the

Declaration in Support of his motion, Counsel checked that he has "confirmed" the client's last known address (¶ 3(b)(1)) "by other means ... : Intellius search dated June 8, 2026."

An "Intellius

search", the nature of which Counsel does not specify, does not qualify as actual confirmation of address equivalent to a return-receipt mailing or conversation, the other methods expressly enumerated in paragraph 3(b)(1). Counsel does not show he confirmed his client's address directly in a manner that satisfies the Rules. As a result, he must show he resorted to reasonable efforts (which includes "conducting a search"). (¶ 3(b)(2).) Counsel has not

demonstrated his efforts are sufficient by indicating he conducted an “Intellius search”, without explaining what an “Intellius search” is and how it is sufficient. And Counsel may not resort to “reasonable efforts” such as conducting a search unless he is unable to confirm his client’s address by more reliable means – such as a telephone conversation or a return-receipt mailing. (See ¶ 3(b)(2).)

Thus, Counsel
has not demonstrated sufficient service of the motion on his client.

Based thereon, Plaintiff’s
Counsel’s Motion to be Relieved as Counsel is CONTINUED to August 27, 2026 at 8:30 a.m. Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the
continued hearing date, Counsel is to file and serve proper supplemental documents addressing defects along with proof of service and notice of hearing on Plaintiff.

The moving party must also submit a
corrected MC-053 form providing accurate dates.

Plaintiff’s Counsel
is ordered to give notice.